



99 Wall Street #4640
New York, New York 10005

December 5, 2025

Clerk of Court

United States District Court
Southern District of New York
500 Pearl Street, Room 200
New York, NY 10007

Re: Remittance for NARA Retrieval – Case No. 1:07-cv-00990

Dear Correspondence Clerk,

This letter is submitted in response to S. Klimek's correspondence¹ regarding our request for a digital copy of the Complaint (Document 1) in:

Olde Monmouth Stock Transfer Co., Inc. v. Depository Trust & Clearing Corporation

Case No. 1:07-cv-00990

Filed February 13, 2007

We acknowledge receipt of your letter explaining that:

- The case file has been transferred to off-site storage with the National Archives and Records Administration (NARA) in Lee's Summit, Missouri
- A prepayment of \$70.00 is required to retrieve the file from storage
- The cost for copying the Complaint is \$0.50 per page, to be determined upon inspection
- Payment must be made by Company Check, Certified Check, or Money Order payable to the Clerk of the Court, SDNY

Accordingly, enclosed please find an Association Order in the amount of \$70.00, payable to the Clerk of the Court, SDNY. This remittance is submitted for the purpose of initiating retrieval of the archived case file from NARA. Once the file is recovered and the page count for the Complaint is determined, we respectfully request notification of any copying fee so that final payment may be remitted without delay.

Thank you for your professionalism and assistance despite the limitations imposed by archival storage policy. We appreciate your efforts on this matter and look forward to your confirmation once the file has been successfully recalled from NARA. Your candid and accurate response gave us an excellent impression of the Office earlier this year, and we hope you enjoy a restful holidays.

¹ See attached copy of letter with this remittance in Appx. A.

In good faith,



John Wooten
Member, WhyDRS

Appendix A

Response to my colleague's request, received in April.

Responding to your letter of March 24, 2025, with apologies I have information for you – none of it agreeable:

First, Court policy does not permit e-mail or fax communication. The Records Department fax number and individual e-mail addresses cannot be revealed to the public;

Second, due to the age of the case and lack of activity the entire file of 07-CV-990 has been sent to storage with the National Archives and Records Administration (NARA) in Lees Summit, Missouri;

Third, just to retrieve the Case from NARA would require the prepayment of **\$70.00**;

Fourth, once recovered from NARA the price to photocopy the Complaint would be **\$0.50/page**, and until we see the document we have no idea what the page count, and hence the fee, would be.

If you wish to order the Case back from NARA, please provide **\$70.00** in the form of a COMPANY CHECK, CERTIFIED CHECK, or MONEY ORDER payable to the **Clerk of the Court, SDNY**. If turn-around time is important, a Money Order is preferred because it would be treated as cash while in the case of a check nothing can be done until the check clears the bank (another Court policy).

I honestly wish I had a better answer to your request.

Sincerely,

S. Klimek
Correspondence Clerk
Records Management

PLEASE RETURN A COPY OF THIS LETTER WITH YOUR REMITTANCE